

ON DUTIES

MARCUS TULLIUS CICERO (c. 103–43 BC)

So identified was Marcus Tullius Cicero with the republic that historian Russell Kirk wrote, “With Cicero fell the Republic.” Marc Antony’s men had hunted Cicero down at his villa, cutting off his head and hands, and placing them on the rostrum of the Roman Senate to show Antony’s ascendancy over the old Republic. Cicero himself had given many famous speeches at that very spot, and scholars have often regarded him as one of the greatest orators ever. Cicero knew the Republic had fallen long before his own age, its spirit being forgotten. Still, he argued for a reclamation of beauty and decorum in civilized society, as ordered by the Natural Law. “True law is right reason in agreement with Nature,” Cicero argued. “The Natural Law is of universal application, unchanging and everlasting; it summons to duty by its commands, and averts from wrongdoing by its prohibitions. And it does not lay its commands or prohibitions upon good men in vain, although neither have any effect upon the wicked. Any attempt to alter this law is sinful, nor it is allowable to try to repeal a part of it, and it is impossible to abolish it entirely. We cannot be freed from its obligations by Senate or People, and we need not look outside ourselves for an expounder or interpreter of it. And there will not be different laws at Rome and at Athens, or different laws now and in the future, but one eternal and unchangeable law will be valid for all nations and for all times, and there will be one master and one rule, that is, God, over us all, for He is the author of this law, its promulgator, and its enforcing judge.”

Cicero’s immense influence on Western civilization could never be properly measured. Not only might one rightly regard him as the single most influential Roman on many of the church fathers, such as Saints Ambrose, Jerome, and Augustine, but one must also recognize his influence on the American founding as well. John Adams once admitted in his diary that he loved reciting Cicero’s orations as much as anything: “The sweetness and

Cicero, On Duties, translated by Harry C. Edinger (Indianapolis: Bobbs-Merrill, 1974): 3, 5–6, 8–10, 12–14, 22–23, 27–29, 32–35, 40–45, 51–54, 84–85, 128–33, 135–27, 139–41. All rights reserved.

grandeur of his sounds, and the harmony of his numbers give pleasure enough to reward the reading if one understood none of his meaning. Besides, I find it a noble exercise. It exercises my lungs, raises my spirits, opens my pores, quickens the circulation, and so contributes to [my] health.”¹

Though he considered himself a “New Academician,” Cicero presented a very Stoic understanding of the virtues and of the cosmos in his On Duties, a letter written to his son, in hopes it might present an anamnesis of the republican spirit to Rome or to whatever civilization might follow in its wake. Though very practical at one level, On Duties also attempts to stir the imagination of its reader at much deeper levels. As Cicero had written through the voice of Quintus in Of the Laws “[The oak] survives, Atticus, and it will always survive: its roots are in the imagination. No farmer’s cultivation can preserve a tree as long as one sown in a poet’s verse.” One only has to remember the tree for it to take root again.

44 BC

¹⁸¹By now you should have a good supply of philosophical rules and theories, Marcus my son, since you have spent a year in Athens itself as a student of Cratippus. The reputation of both the teacher and the city is extremely high. Cratippus can provide you with knowledge, Athens with inspiration. Yet in spite
5 of such advantages, I think you might follow my practice. I have always found it profitable to combine Latin and Greek studies, and I have done this not only in philosophy, but also in the practice of speaking. You, too, will eventually have equal command over both languages if you combine their study. In this respect I believe I have been very useful to the Romans, so that beginners in Greek as
10 well as educated people believe themselves far more at ease both in speaking and in judging the languages....

¹⁸⁴Since I have decided to write down something to send you on this occasion (there will be more later), I especially want to begin with what is most suitable to your age and my position. Although in philosophy many profound and useful
15 ideas have been the subject of subtle and eloquent debates among philosophers, the most widely relevant one seems to be their lessons and teachings about responsibility, whether your business is that of a public official or an ordinary citizen, in the law courts or at home, whether you are acting alone or are entering into an agreement with someone else: all good actions in life come from
20 maintaining your responsibilities; when you neglect them the result is discredit.

¹⁸⁵The inquiry into duty is common to all philosophers: is there anyone who would dare to call himself a philosopher without having handed on instructions

¹Quoted in Carl J. Richard, *Twelve Greeks and Romans Who Changed the World*, 187.

about duty? There are, of course, some schools of philosophy that completely distort duty when they define the greatest good and the worst evil. Take, for example, the man who has established the kind of highest good that has nothing in common with virtue, that is measured by the individual's convenience, not by his morality. If that man is consistent and is not in the meantime overcome 5 by natural goodness, he cannot cultivate friendship, or justice, or openness of character. In fact, a man of courage who considers pain the greatest evil, or a temperate man who declares indulgence to be the greatest good, is surely an impossible contradiction....

§11 To begin with, nature has bestowed on every species of living things the 10 instinct to protect its own life and limb, to avoid what it believes will be harmful, and to hunt and provide everything necessary to maintain life, such as nourishment, shelter and other similar requirements. Other instincts common to all living things are the desire for intercourse for the sake of procreation and some degree of affection toward the offspring thus brought forth. The great- 15 est difference between man and beast, however, is this: that the beast adapts itself to what is at hand and what is present only to the extent that a physical reaction impels it; it perceives the past and the future only slightly. But man is endowed with reason, by which he perceives inferences and sees the causes of facts, that is, he is fully aware of what we might call their antecedents or their 20 origins; he compares resemblances and connects with or weaves into present circumstances those in the future; he easily sees the entire course of life and prepares beforehand the things necessary to its conduct.

§12 By the power of reason nature also associates one man with another to form 25 a society of common culture and life; to begin with, it implants in the parents a certain individual love toward those children born from them; then it drives a man to desire the existence of groups and gatherings of people and to participate in them. For these reasons he is then anxious to acquire the necessary accompaniments of civilization and comfort, not for himself alone, but for his 30 wife, his children, and others he holds dear and ought to defend. This concern also stimulates men's characters and makes them superior in accomplishment.

§13 Inquiry into and searching for truth are primary characteristics of mankind. 35 So when we are free from business obligations and other preoccupations, we become eager to see something new, to hear and learn something; we begin to think that knowledge about the mysteries and wonders of the world is necessary to a happy life. This eagerness leads to the recognition that what is true, simple, and straightforward is most congenial to human nature. A striving for

independence accompanies this eagerness to contemplate the truth, so that a man whose character is well-formed by nature does not wish to obey anyone except an adviser or teacher, or someone who holds power lawfully and correctly for the common good. This striving creates breadth of character and indifference to external conditions.

15 ¹⁵14 The power of natural understanding is not negligible, because by it man, alone among living things, experiences the essence of order, the essence of *decorum*, and develops a true knowledge of moderation in action and speech. This is also particularly true of whatever objects the eyes perceive: no other
 10 animal grasps their beauty, their attractiveness, or the symmetry of their parts. The natural understanding, transferring an image of this perception from the eyes to the mind, begins to think that it should respect beauty, symmetry, and order a great deal more in planning and action. This understanding begins to see to it that none of its actions are unseemly or unmanly; eventually in every
 15 thought and deed it is careful neither to do or to think of anything dishonorable. The particular good that we are seeking is gathered and constructed from these attitudes, and even if men do not commonly admire it, it is still good. What we say about the good is correct: even if no one praises it, it is by nature praiseworthy....

20 ¹⁵20 The principle that applies most broadly to the three remaining virtues is the one that holds together the society of humans among themselves or what might be called the "community of life." It has two parts: justice, in which virtue's splendor is unsurpassed and from which good men derive their reputation; and, related to justice, generosity, which may also be called kindness or beneficence.
 25 The first function of justice is to see that no man shall harm another unless he has been wounded by wrongdoing. The second is to see that each man uses public property for public benefit and his private property for himself.

¹⁵21 In nature nothing is private property. Property becomes private by longstanding occupation, that is, people once settled on vacant land; or by conquest, that
 30 is, someone gained control in a war; or by a law, by a contract, a stipulation or by casting of lots. It is on this principle that the Arpinates own the land of Arpinum and Tusculum belongs to the Tuscullans. The definition of individual private possessions is analogous. It follows that each man should remain in possession of what he obtains for himself, since what had once naturally been
 35 shared becomes each man's own. It follows from this that whoever craves another's possessions violates a basic condition of human society.

§22 Plato wrote brilliantly on this point: “We have not been born for ourselves alone; our native land claims a portion of our origin, our friends claim a portion.”² The Stoics like to repeat that everything that comes into being in the world is created for the benefit of man, that even men themselves are born for mankind’s sake, that people can be helpful among themselves, one to another. The Stoics say that we should follow nature’s lead in this and that we should contribute to the public benefit by the mutual interchange of obligations, by both giving and receiving. By our skills, by our efforts, by our capacities we should thus link men together into a human society. 5

§23 Trust is basic to justice. By trust I mean stability and truth in promises and in agreements.... There are two classifications of injustice. One part includes those who act unjustly. The other part includes men who, even if they have the power to do so, fail to protect from abuse those people against whom other men commit violence. The man who unjustly does harm to someone else, either in anger or because some other passion arouses him, acts as if he were striking a companion. But the man who does not avert an act of violence, or offer resistance if he has the power, is just as much at fault as if he betrayed his parents, or friends, or his fatherland. 10 15

§24 Those crimes that men commit deliberately to cause harm often arise from fear. I mean that a man who makes up his mind to harm someone else fears that he might suffer some injury himself unless he commits the crime. On the whole, however, men resort to criminal activity to get possession of what they crave. Greed is the clearest motive of crime.... 20

§41 ...Now wrongdoing originates in one of two ways: either by force or by deception; deception is like a little fox, force like the lion. Both are most uncharacteristic of man, but deception should arouse greater contempt. Taking all forms of injustice into account, none is more deadly than that practiced by people who act as if they are good men when they are being most treacherous.... 25

§53 Now there are several levels in human society. Apart from mankind as a whole, which we shall now leave out of the discussion, there is the more restricted level of belonging to the same race, the same tribe, and the same language: these join men together very closely. An even closer relationship is to belong to the same city; for fellow citizens hold many things in common: the forum, temples, colonnades, roads, laws, statutes, courtroom, voting rights, and most important, 30

²Plato, *Epistle IX*, (to Archytas)

customs and observances and the arrangements and agreements that thousands have entered into with thousands of others. Even closer are the ties among a group of relatives. From the all-embracing society of mankind as a whole, you see, the discussion narrows down to something small and circumscribed.

- 5 ¹⁵⁵⁴We may assume that it is naturally common to living things to have the desire to procreate. The first stage of society, then, is in the basic man-wife relationship; a second stage is in the children of that union; and a third state is in the single household where the members share everything. The household is the foundation of the city, what we might call the “seed-bed” of the state. There
 10 follow the relationships “brother” and “sister” and then those of “cousin” and “second cousin.” When a single house cannot shelter all of them, they migrate to other houses as if they were going out to colonies. Marriages and alliances of families deriving from those marriages follow, and they result in even more relatives. These propagations and off-shoots are the beginnings of states. So
 15 blood relationship links men together in good will and affection; ¹⁵⁵⁵for it is worth a great deal to have common ancestral monuments, to employ the same religious rites, and to possess common burial places.

- Yet of all associations none takes higher rank, none is more secure, than when good men who are alike in character have joined in fellowship. The moral
 20 goodness that I have mentioned so often stirs us even when we perceive it in a stranger; it makes us friends with a man in whom it is obviously present. ¹⁵⁵⁶I grant that any virtue attracts us and causes us to love those in whom it appears to be present. Justice and generosity, however, have this effect beyond all other virtues. Also, nothing is more conducive to friendship and intimacy than the
 25 similarity of character among good men. Men who have the same interests and the same outlook take satisfaction each in the other as much as in himself. The Pythagorean ideal of friendship takes on reality; one replaces the many. Furthermore, the sharing that the reciprocal giving and receiving of kindnesses creates is great; as long as the exchange is mutual and acceptable, it binds those
 30 between whom it takes place by an unbreakable relationship.

- ¹⁵⁵⁷When you examine everything with your mind and spirit, no relationship is more important, none is more attractive than the relationship each one of us has with our country. Our parents are dear, our children are dear, our relatives, our friends; but the fatherland alone embraces all of our deep feelings. What
 35 good man would hesitate to meet death for its sake, if he could be of any use to it? That is why I find so detestable the viciousness of those men who have torn their fatherland to pieces with every kind of crime, who have been and still are working for its complete destruction.

I§58 If there should arise any need to estimate or choose by comparison those who are entitled to receive your highest duty, the fatherland and the parents should come first: our debt to their kindness is the largest. The children and the household in general come next: they depend on us alone and cannot look to any other refuge. The last place goes to the deserving friends: your destiny is often intertwined with theirs. For this reason, one owes the basic protections in life especially to those groups of people I have just enumerated; but it is especially in one's friendships that one finds the real strength of a shared life and households, advice, conversations, encouragements, consolations, and even occasional arguments. A friendship that a similarity of character has cemented together is the most pleasant of all. 5 10

I§59 In carrying out all these obligations, you have to be cautious about what each person most needs, and what each person can accomplish or not, even without us. When you take this into consideration, the degrees of relationship are not going to be identical to those of circumstances. There are duties that one owes more to some people than to others.... 15

I§65 I conclude that we should consider strong and courageous not those men who inflict injury but those who protect others from injury. Moreover, a genuine, wise nobility of character decides that the moral excellence that nature requires above all consists of accomplishments, not of reputation; a man of such character prefers to be a true leader, not an apparent one. You cannot count among great men those who depend on the instability of an inexperienced mob. Also, insofar as a man has an ambitious character, his lust after a reputation easily drives him on to criminal acts. Reputation, of course, is a sensitive topic, because you can find hardly anyone who, once he has taken on hardships and broached dangers, does not desire a bit of fame as if that were the payment for his accomplishments. 20 25

I§66 Two distinctive traits especially identify beyond doubt a strong and dominant character. One trait is contempt for external circumstances, when one is convinced that men ought to respect, to desire, and to pursue only what is moral and right; that men should be subject to nothing, not to another man, not to some disturbing passion, not to Fortune. The second trait, when your character has the disposition I outlined just now, is to perform the kind of services that are significant and most beneficial; but they should also be services that are a severe challenge, that are filled with ordeals, and that endanger not only your life but also the many comforts that make life attractive. 30 35

1867 Of these two traits, all the glory, magnificence, and the advantage, too, let us not forget, are in the second, while the drive and the discipline that make men great are in the former. A certain quality exists there that breeds individuals of outstanding vigor who are not affected by ordinary concerns. Two signs help
 5 us to recognize this particular quality: if you decide that only what is moral is good, and if you are free from any mental turbulence. You must believe that it is characteristic of a strong and heroic mind to consider trivial what most people think glorious and attractive, and to despise those things with unshakable, inflexible discipline. To endure reverses that seem bitter, the many varying events
 10 that happen during men's life and fortune, to endure them so that you depart not one inch from your basic nature, not a jot from a wise man's self-respect: that is the mark of a strong spirit and of great consistency.

1868 However, it is inconsistent for a man who is impervious to fear to succumb to physical desire, or for a man who has shown that hard work cannot destroy
 15 him to yield to pleasure. So you must beware of desire and pleasure. You must also shun the greed for money; nothing is as good an index of a narrow and trivial spirit as the love of wealth; nothing is more upstanding and glorious than the contempt for wealth if you are not wealthy, or if you have wealth, to apply it to benefits and generosity. Infatuation with a glorious reputation should be
 20 avoided, as I said above; for that takes away freedom, and men of great spirit ought to pursue independence by every means. Of course you should not grasp military commands; you should even try to evade them occasionally and sometimes submit your resignation.

1869 You must also be free from any disturbance of the spirit, both from lust
 25 and fear, as well as from anxiety or sensuality or anger, so that you possess both mental tranquility and calm; with them goes self-control as well as self-esteem. There exist and have existed many men who, in pursuit of the tranquility I speak of, have withdrawn from public affairs and taken refuge in retirement. Among them are the most distinguished philosophers, the leading teachers,
 30 and certain serious and thoughtful men. They could not endure the habits of the people or of the rulers, and a great many have lived in the country, taking pleasure in their own private estates.

1870 These men had the same object as kings: to be in want of nothing whatsoever, to be in no one else's service, to enjoy freedom, whose definition is to
 35 live in just the way you want. Those who desire power pursue this goal just like the retiring people I mentioned. The one group, however, think they can attain their aim if they possess great wealth; the others if they are content with

their small private property. In this matter you can condemn neither group's convictions, of course, but the life of those who withdraw is both easier and safer and less harsh or harmful to others. On the other hand, the life of men who have devoted themselves to government and to the administration of great enterprises is more beneficial to the human race and more advantageous to their own fame and magnificence.... 5

§72 Nature blesses some men with the talents for governing. They should cast aside any hesitation, take public office and help operate the government. There is no alternative way to rule the state, or to reveal a man's greatness of spirit. Men who govern a state, no less than philosophers and probably even more than philosophers, should possess both greatness and the contempt for merely human affairs that I constantly mention, the tranquil spirit and the independence. These are the conditions of freedom from fear and they are necessary to a life of seriousness and self-control. 10

§73 These attitudes are easier for philosophers to achieve insofar as their way of life is less exposed to the blows of fortune and insofar as philosophers do not feel the need of numerous possessions, and because they cannot fall very disastrously if anything evil happens to them. It is not without reason that men who govern the state are prone to stronger disturbances of the spirit and greater ambition for accomplishment than men who retire. Therefore statesmen require more greatness of spirit and freedom from annoyances. The man who undertakes the task of governing should also beware that he does not consider only the moral correctness of an action; he should also consider whether he has the ability to carry it through. At the same time he should remember not to despair uselessly through cowardice and not to be excessively confident through eagerness. In any transaction, he must apply hardheaded forethought before he begins.... 15 20 25

§85 Those who are going to be in charge of the government should most certainly remember two teachings of Plato. The first instructs them to watch over the interests of the citizens in such a way as to refer to it in everything they do and to forget completely about their own interests. The second tells them to minister to the entire body of the state so as not to neglect the majority while they are vigilant for a particular sector. We may compare Plato's advice to legal guardianship: one should administer the estate for the advantage of the legal wards, not for the profit of the guardians. Men who take care of one group of citizens but neglect another group introduce into the state an extremely destructive circumstance, treason and discord. The result is that some appear to be leaders of the people while others appear to support the aristocrats, but there are few who lead the whole populace. 30 35

5 **§86** This situation caused great strife among the Athenians, and in Rome the result was not merely conspiracies but destructive civil wars as well. A self-controlled and courageous citizen, who conceivably could hold the highest rank in the state, will shun these things, will hate them, will devote himself entirely to government, will not pursue wealth or power, and will be guardian over the whole state so that he might work to everyone's advantage. Of course he will not involve anyone in hatred and blame by false criminal charges and, in general, will so cling to justice and morality that, as long as he upholds them, he would rather suffer any misfortune, however severe, and go to meet death rather than
 10 abandon the qualities I mentioned.

15 **§87** Campaigning for public office and fighting for election are on the whole quite degrading. Again, Plato speaks brilliantly about this: "those who argue with each other about who should rule the state act like sailors who fight over who should steer the boat." He also teaches that, "we shall regard as enemies only those who bear arms against us, not those who might wish to govern the state out of private conviction." ...

20 **§88** Of course you should not listen to men who think you must be bitterly angry with your foes and who imagine this is the sign of a great and strong man. Nothing is more praiseworthy, nothing more worthy of a great and outstanding man than a reasonable and forgiving attitude. Among free peoples, where everyone enjoys equal rights, you must practice courtesy and what we might call detachment. Those qualities will prevent us from lapsing into profitless and repulsive bad temper if we become annoyed when people barge in at inconvenient times or pester us with irritating questions. Yet gentleness and mercy deserve approval
 25 only as long as strictness continues to be effective on behalf of the state: without such severity no one can run the government. Also, all criticism and correction ought to be free from insult and should be used for the benefit of the state, not the profit of the person who punishes or verbally corrects another.

30 **§89** One should also be careful that the punishment does not surpass the crime and that some people receive beatings while others do not even receive a reprimand, both for the same crime. In administering punishment, the most important thing to avoid is anger; for the man who attempts to mete out punishments in a state of anger will not maintain the balance between "too much" and "too little." The "mean" appeals to the Peripatetics, and so it should, if only
 35 they did not praise hot temper and say that it is a profitable gift of nature. You should restrain your temper at all times, of course; one should hope that the men who head the state resemble the law, for the law does not punish because it is angry but because it is just.

¹⁸⁹⁰Let us shun haughtiness, arrogance, and especially overbearing pride, even when things go well for us, rolling along just as we wish. For it is only the changeable man who reacts violently to bad luck or to good luck. An even temper in every phase of life, always the same expression, the same face: that is admirable, a quality we learn from Socrates and Gaius Laelius as well. I note that even Philip, King of Macedonia, although his son outdistanced him in military exploits and renown, was never surpassed in adaptability and human feeling. Philip was unfailingly great, Alexander was frequently scandalous. So those who teach that the higher we rise, the more humbly we should conduct ourselves are clearly giving correct advice.... Men who have become unbridled and excessively self-confident through prosperity ought to be led, as it were, into the ring of reason and philosophy, so they can see the fragility of men's circumstances and the changeability of luck.

¹⁸⁹¹Even when you are most prosperous, you should make the greatest possible use of your friends' advice, and you should allow their influence to be even greater than before. In those same circumstances we must beware of lending an open ear to flatterers and of allowing them to praise us excessively. It is easy to be trapped by flattery. We begin to think we are the type of person that men should really praise. That is the beginning of innumerable crimes, since men who overrate themselves because of other men's flattery expose themselves to shameless ridicule and get involved in the extremes of misjudgment. That is surely enough on these matters.

¹⁸⁹²The following conclusion is inevitable: those who rule states perform the most significant and boldest actions because nothing extends more widely or affects more people than an entire government. However, there are also many courageous individuals, past and present, who, although they live in retirement, carry out certain great inquiries or enterprises but content themselves within the boundaries of their own business. They fall half-way between philosophers and those who conduct public affairs, and they take pleasure in their own private estate, not expanding it by every possible means, not excluding their relatives from its benefits, but rather sharing it with both friends and the state if there is need. The first obligation is to acquire such an estate honestly, not by some shameful or despicable transaction. Second, its expansion should be the result of planning, industry, and thrift. Lastly, it should prove itself beneficial to as many as possible, as long as they deserve it; it should not serve lust and dissipation in preference to generosity and usefulness. By observing these rules a man can live richly, impressively, independently and yet also plainly, honestly, and as a true friend of man.

1893 It follows that I must speak about the one remaining category of morality, the one where we find the sense of shame and the qualities that we may say give shape to a life: restraint, self-control, a complete conquest of anxieties, and moderation in all things. This area deals with what Latin calls *decorum* and what Greek calls *prepon*. It has the property of being inseparable from morality.

1894 What is moral is “becoming,” and what is “becoming” is moral. It is easier to understand the nature of the difference between *decorum* and what is moral than to explain it. Whatever is “fitting” appears only when moral correctness has preceded it. So *decorum* appears not only in the category of moral correctness that I must talk about here but also in the three preceding categories. (1) To think and to speak wisely and to carry out your actions prudently, and to see the truth in every situation and to support it: these are signs of *decorum*. On the opposite side, to be tricked, to be mistaken, to hesitate, to go astray are as “indecorous” as insanity or being simpleminded. (2) Also, everything just is becoming, while unjust actions, since they are degrading, are unbecoming. (3) The relationship with courage is similar. An action of manliness and great spirit seems worthy of a man and becoming; an opposite action is as unbecoming as it is degrading.

1895 That is why this quality that I call *decorum* surely pertains to every category of morality. The relation between them is such that *decorum* requires no tortuous reasoning process to grasp; on the contrary, it is as plain as day. *Decorum* is a distinct quality that can be traced in every kind of virtue. It is possible to detach it from virtue, but more in speculative theory than in fact. Just as it is impossible to separate loveliness and physical beauty from health so this *decorum* that I am discussing is thoroughly blended with virtue, and yet it is possible to separate them in the mind and in thought.

1896 It can, moreover, be divided into two groups: we understand a certain general *decorum*, which is connected with all types of moral correctness, and another subsidiary *decorum*, which relates to separate classifications of moral correctness. General *decorum* is usually defined in this way: *decorum* is a quality consistent with the superiority of man insofar as his nature surpasses that of other living things. The subsidiary part to the whole is defined like this: *decorum* is the achievement of a harmony with nature that reveals a man’s moderation and self-control, together with that certain outlook that characterizes a free man....

1897 However, on the whole, each man should retain his particular qualities, though not the harmful ones; that will make it easier for him to preserve the

decorum that we are seeking. We have the obligation to act in such a way that we do not put ourselves in opposition to nature in general, and yet we must follow our particular nature without violating the general one. Even if other pursuits are more important and attractive, we should nevertheless measure our own ambitions against the yardstick of our own nature. It is not profitable to fight against nature or to pursue something that you cannot attain.... 5

II§114 ...If we have a choice, we shall work faithfully at those things that are most suitable to us. If from time to time necessity pushes us into affairs that are alien to our character, complete care, forethought, and application must be brought to bear. In such circumstances we should act with as much fitness as possible, since complete *decorum* cannot be expected. One must strive not so much to accomplish good results that may not be granted to us as to avoid bad faults.... 10

II§21 Now whatever men bestow upon another man to enrich and promote him, they bestow either because of good will when they like someone for whatever reason; or because of the man's achievement if they respect his character and think that he deserves the greatest good fortune; or because they put their trust in someone and think that he takes a great interest in their affairs; or because they fear someone's wealth or, conversely, expect something from someone, as when kings or demagogues make various lavish gifts; or finally because they are enticed by bribes or rewards. This last is undoubtedly the most sordid motive and the most unfair one, both to those who are ensnared in it as well as to those who try to use it. 15 20

II§22 It is an evil business when one tries to do something with money that should be done by virtue. But because such subventions are frequently unavoidable, I shall discuss how a man should use them, once I have discussed topics that are more relevant to virtue. Men go so far as to subject themselves to the rule and power of another man for a variety of reasons. They are influenced by good will, or by the extent of benefits received, or by the glamour of the other man's prestige, or by the hope that submission will be advantageous to themselves, or by fear that they might be compelled to obey force; or they are enticed by the hope of largesse and by promises, or finally, as we often witness in our government, seduced by a bribe. 25 30

II§23 However, among all qualities there is no more appropriate way to preserve and defend one's resources than to be well-liked, nothing less appropriate than to be feared. Ennius has an excellent verse, 35

They hate the man they fear; and when one man hates

Another, he hopes to see him dead.

Recently men realized, if they did not know it before, that no power can resist the hate of the multitude. The death of a recent notorious tyrant is not the only one that makes clear how relentlessly the hatred men feel works toward destruction; the citizens oppressed by weapons endured this tyrant....
 5 But comparable assassinations of other tyrants also make this clear, and hardly one of them avoided such an end. To arouse fear in others is a bad guarantee of longevity, while on the other hand good will is faithful into eternity.

II§24 Men who dominate and command other men, whom they have subjugated
 10 by force, have to apply some harshness, just as the owner uses harshness toward his slaves if he cannot control them any other way. But it is completely senseless for men in a free city to act in such a way that it causes others to live in fear: no one could be more insane. Although an individual's wealth and power may circumvent the laws, although he may threaten liberty, nevertheless laws and
 15 liberty eventually rise to the surface again, either by anonymous expressions of opposition or by secret arrangements to secure election to important offices. But the wounds caused by the suspension of freedom hurt worse than those caused by maintaining it. So let us embrace a rule that applies widely and that is extremely effective not only in maintaining safety but also in acquiring wealth
 20 and power, namely, that there should be no fear, that one should hold affection dear. This is the easiest way for us to attain what we want both in private affairs and in the government....

III§18 Those who measure everything by rewards and profits and who do not assign more importance to right conduct than to profit constantly weigh right
 25 conduct against what they consider profitable when they are making a decision. Good men never do this.... It is extremely shameful not only to value what seems profitable more highly than what is right conduct, but also to compare these with each other and to debate inwardly about them.

The question is, then, why do situations constantly arise that cause discussion and that make us hesitate about our course of conduct? They arise whenever
 30 there is hesitation about the essential nature of the action under consideration.

III§19 It often happens in particular circumstances that what people usually consider a shameful act turns out to be not shameful at all. For the sake of example, let me mention a single case that has applications beyond itself. What
 35 crime could possibly be greater than the slaying of a man, or, worse, of a man who is your close friend? But has anyone who has killed a tyrant, no matter how close he was to him, stained himself with a crime? It does not seem so, of

course, to the Roman people, who think that this is the most attractive of all remarkable deeds. In this case does benefit outweigh right conduct? Far from it: benefit resulted from right conduct.

Therefore, we must set up a rule; then we will not make any mistake if it ever happens that something we consider profitable seems to be in conflict with what we know is right conduct. If we follow this rule when we compare actions, we shall never desert our moral duty. 5

III§20 As far as possible, this rule will be consistent with the thought and learning of the Stoics.... The Stoics believe that right conduct is identical with expedient conduct and that no action whatsoever is expedient that is not also right conduct. This Stoic position is more attractive than the one taken by those who say that right conduct is inexpedient and that expedient actions are not right conduct.... But let me return to the rule. 10

III§21 To deprive another man of something, to increase your own comfort by making another man miserable, is more against nature than death, poverty, pain, and any other misfortune that can happen to one's body or one's possessions. In the first place, such an act does away with human society and social co-operation. If we are so demoralized that a man will rob or injure another man to achieve a private advantage, it necessarily follows that what is pre-eminently "according to nature," the social structure of the human race, will disintegrate. 15 20

III§22 For example, if each separate limb of the body had the ability to think and believed that it would be able to strengthen itself by drawing out the strength of a near-by limb, it necessarily follows that the whole body would grow weak and perish. In the same way, if every one of us should seize the possessions of others, should drag off what he could for his private advantage, it follows necessarily that society and co-operation among men would be destroyed. One can grant that as individuals men prefer to acquire the things that make life enjoyable for themselves, rather than for strangers. That is completely natural. But nature does not allow us to increase our own resources, property, and wealth by plundering other peoples'. 25 30

III§23 It is forbidden to harm another person for one's own private benefit. This idea is established not only by nature, that is, by the law of nations, but also similarly by the laws of peoples, the laws that support the government in various individual states. Laws look to this end, they have this purpose: that the society of citizens remain undisturbed; whoever disrupts this society is punished with exile and death, with fines and prison. The very plan of nature 35

itself demonstrates this much more effectively. That plan is law for both gods and men; whoever wishes to obey that law (and everyone obeys who wants to live according to nature) will never go so far as to attack another man and to appropriate for himself what he has seized from someone else.

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III§24 Greatness of soul and high courage and courtesy, a sense of justice and generosity are far more in accord with nature than sensuality, existence itself, or wealth. In fact, it is the mark of a great and exalted spirit to weigh these things against the common benefit and then reject them and count them as nothing. To rob another man for one's private advantage is more against nature than
10 death, pain, and similar things.

III§25 By the same argument, it is more "according to nature" to take upon yourself enormous work and trouble in order to preserve and aid all the nations, if that is possible, and to imitate the renowned Hercules: his fame among men kept alive the memory of his good deeds and earned him a place in the council
15 of the heavenly gods. These actions are preferable to living for yourself, not merely apart from every trouble, but also in the midst of all kind of delicacies, amid the most refined pleasures, surpassing all others in beauty and strength. For this reason, every person of the greatest and most brilliant talent infinitely prefers a life of action to the alternative. A result is that the man who obeys
20 nature is quite unable to harm another man.

III§26 Next consider the man who injures another man in order to secure some advantage of himself. He either believes that he is not doing anything against nature or he thinks that to harm another human being is not worse than death, poverty, pain, or even the loss of children, relatives, or friends. What kind of
25 discussion can you hold with him if he believes that wronging another man is not an action against nature? His concept of "man" simply does not include what is essentially human. If he thinks doing harm should in fact be avoided but believes those other things like death, poverty, and pain are much worse, he is wrong. He falsely assumes that any injury to the body or any loss of property
30 is more serious than injuries of the soul. So there ought to be one single rule for everyone: that what benefits each individual and what benefits all mankind should be identical. If any individual seizes an advantage for himself, the whole of human society will break apart.

III§27 Furthermore, if nature demands that a man be willing to help another
35 man, whoever he might be, for the simple reason that he is a human being, it necessarily follows that, according to the same nature, the advantage of all men

is shared. If this assumption is correct, one and the same law of nature binds all of us. If this last assertion is also correct, we are certainly restrained by a law of nature from harming another human being.

III§28 The first assertion is true and so, therefore, is the last. The contention that some people advance is absurd, of course: they argue that they would not deprive a parent or brother of anything for their own advantage but that there is another standard applicable to all other citizens. These people do not submit themselves to any law or to any obligation to co-operate with fellow citizens for the common benefit. Their attitude destroys any co-operation within the city. In the same way, those who say that one standard should be applied to fellow citizens but another to foreigners, destroy the common society of the human race. When that disappears, good deeds, generosity, kindness, and justice are also removed root and branch.

We must draw the conclusion that people who do away with these qualities are disrespectful even against the immortal gods. They destroy the co-operation among men which the gods instituted. The strongest bond in this co-operation is the thought that it is more against nature if one man deprives another for his own advantage than if that man himself suffers destruction of any kind, either to his property, or to his person, or even to the spirit itself...that are not characterized by justice, because this one virtue is the mistress and queen of all the others.

III§29 Perhaps someone might say, "But consider a wise man who is dying of hunger. Will he not take food from another man, a man who is quite useless for anything?" [Not true at all. For my life is not more useful to me than that particular disposition of mind that prevents me from harming anyone for my own advantage.] "Second: suppose a good man could steal clothing from Phalaris, that cruel and monstrous tyrant, to keep himself from dying of cold. Should he not do it?" These hypothetical cases are extremely easy to decide.

III§30 If you take something for your private use away from another man who is useless to anyone, you act inhumanly and against the law of nature. However, if you are the kind of person who can bestow a great benefit on the state and human society by remaining alive, then there is no blame if you deprive another man of something to sustain your life. Yet if this is not the situation, each man should endure his own suffering rather than reduce the benefits of another person. In summary, neither disease nor dire want, nothing of that kind is more contrary to nature than coveting and stealing another man's belongings. Disregard of the common benefit is against nature because it is unjust.

III§31 The same law of nature preserves and defines the benefits common to all

men. It will ultimately decree that commodities necessary to life may be transferred from a slothful and useless man to a man who is wise, good, and strong, one who would greatly reduce the common good if he should die. However, the law should act in such a way that the good man does not use this as an excuse
 5 for doing wrong because he has a good opinion of himself and loves himself. Thus he will always perform his duty while considering the benefit of men and, as I always repeat, that of the human society...

III§35 Now when some apparent advantage offers itself, we are inevitably attracted to it. But when we examine it closely, when we see that immorality is involved
 10 in the circumstances that present an appearance of expediency, then we are not forced to relinquish the advantage; we merely have to realize that expediency cannot exist in the same place as immorality. If nothing is as contrary to nature as immorality, since nature desires the right, the appropriate, the consistent, and shuns their opposites; and if nothing is so much according to nature as
 15 expediency, then surely expediency and immorality cannot exist in the very same set of circumstances. However, Zeno thought that we have been born for right conduct and that it alone should be sought out. On the other hand, Aristotle thought that men should consider right conduct more important in any calculation than anything else. From both opinions it necessarily follows
 20 that what is right conduct is either the only good or the greatest good. What is good is doubtlessly expedient, and so whatever is right conduct is expedient.

III§36 The false reasoning of unscrupulous men, once it has seized on something apparently expedient, immediately distinguishes between that and right conduct. That is the origin of assassins' daggers, of poisonings, of forged wills, of thefts
 25 and embezzlements, of plunderings and lootings of allies and fellow citizens. That is the source of desire for excessive wealth, for intolerable power, ultimately even the desire to act like a king in states that have self-rule. Nothing more shocking, nothing more repulsive than such desires can be imagined. Men draw the wrong conclusions and envisage rewards for these actions, they do not see
 30 the penalties. I do not mean punishment by the law, which men often evade, but the punishment of degradation itself, which is extremely harsh.

III§37 This group of vacillators should be whipped out of society; they are completely criminal and ungodly. They debate with themselves whether they should follow what they see to be right conduct, or whether, with full knowledge,
 35 they should corrupt themselves with crime. There is crime in the mere act of deliberation, even if they do not decide on a criminal action. For this reason, since it is wicked merely to think about certain courses of action, they should

simply have no place in your deliberations. Furthermore, no deliberation should ever be based on the expectation or assumption that you are going to conceal or cover up your actions. If we have made any progress at all in philosophy, we should be sufficiently convinced that, even if we could hide our actions from all mankind and from all the gods, we should never do anything greedy, unjust, lustful, or intemperate. 5

III§38 To illustrate this truth Plato introduces the well-known Gyges. Once when the ground had split apart after some violent rainstorms, Gyges climbed down into the cleft, as the story goes, and discovered a bronze horse. There were doors in the flanks of the horse, and when they were opened he saw the body of a dead human of unusual size. There was a gold ring on one of his fingers. Gyges removed the ring, put it on his own finger and then went back to the gathering of shepherds (he was one of the King's shepherds). There he discovered that, when he had turned the bezel of the ring toward his palm, he was invisible to everyone. But he was still able to see everything and became visible again when he had turned his ring back to its proper position. So, making use of the advantage offered by this ring, he seduced the queen, and with her as a helper brought about the death of his master, the King. He removed all those who he believed were standing in his way, and he was completely invisible as he performed these crimes. Thus, with the help of the ring he swiftly rose to be king of Lydia. The point is if a wise man had this same ring, he would not think he was any freer to do wrong than if he did not have it. Good men seek right conduct, not conduct that has to remain concealed.... 10 15 20

III§41 ...However, we must not relinquish our own personal advantages and surrender them to other people when we need them ourselves. Each man must protect his own advantage insofar as it can be realized without harm to another person.... 25

III§43 Friendships are especially liable to throw moral duties into confusion. It is a violation of your moral duty to fail to perform what you can properly do on behalf of a friend. But to do something unjust on his behalf is also a violation. The rule covering this whole area is short and easily grasped. You must never subordinate your friendships to ambitions that appear to you to be advantageous, election to office, for example, making money, sexual gratification, or other apparently advantageous objectives. Yet a good man will never act against the state or against his oath and trust for the sake of a friend, not even if he is actually the judge in a friend's trial.... 30 35

III§45 I am, you understand, speaking about everyday friendships. No concessions

of that sort are possible among wise and perfect men. They say that Damon and Phintias, the Pythagoreans, were devoted to each other in a remarkable way. When Dionysius the tyrant set the day of execution for one of them, the one condemned to death requested a few days delay to arrange for the maintenance
 5 of his relatives. The other friend went bail for his appearance in court; he had to die if his friend did not return. When the condemned man returned on the set day, the tyrant was amazed at their mutual trust and asked that they accept him as the third partner in their friendship.

III§46 Even in friendships, therefore, when you compare what seems advanta-
 10 geous with right action, the mere appearance of advantage should yield, and right action should prevail. Moreover, when friends ask you to do things that are not right, the scruple of conscience and trustworthiness should take precedence over friendship. In this way we will select the correct duty, and it is a principle of selection that we are seeking....
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